

## **Privacy policy**

Website <https://www.FOCUS Edu.com> are owned and operated by Clutch Players Corporation Private Limited a company duly registered and incorporated under the Companies Act, 2013, located at Trichy, Tamilnadu, India.

FOCAS EDU, is strongly committed in protecting your privacy and has taken all necessary and reasonable measures to protect your personal information and handle the same in a safe and responsible manner in accordance with the terms and conditions of this policy ("Privacy Policy") set out herein below:

<https://www.FOCAS Edu.com> - by FOCAS Edu are places for people to prepare for Chartered Accountancy examinations in India or Abroad. The services provided on the website are paid service. However the Company may at its sole discretion choose to provide these services free of cost to a user, or a group of users based on a criteria that it may decide and amend at any time. The information contained in this Website and the personal information collected by using/ login and or accessing this Website are stored at a secured server. It is stated by the server service provider that they have all the best security practices required for the server. The security and privacy practices of the server operator can be known

The Website are owned by an Indian company and is located in India. Hence, we are duty bound to abide by the laws, regulations, rules, circulars, notifications and governing privacy in India. This Privacy Policy is applicable to all users of Website. The user is herein collectively referred to as "You". You may note that this Privacy Policy may be found deficient with respect to certain privacy laws of some other countries.

By visiting this Website and Installing you agree to be bound by the terms and conditions of this Privacy Policy. If you do not agree please do not use or access our Website. By mere use of the Website, you expressly consent to our use and disclosure of your personal information in accordance with this Privacy Policy.

Please read this privacy policy ('Policy') carefully before using the Application, Website, our services and products, along with the Terms of Use ('ToU') provided on the Website. Your use of the Website, Website or products ('Services'), or registrations with us through any modes or usage of any products including through Pen Drives, SD cards, tablets or other storage/transmitting device shall signify your acceptance of this Policy and your agreement to be legally bound by the same.

If you do not agree with the terms of this Policy, do not use the Website our products or avail any of our Services.

### **User Provided Information**

The Website/Services/products obtains the information you provide when you download and register for the Application or Services or products. When you register with us, you generally provide (a) your name, email address, phone number, and educational interests; (b) transaction-related information, such as when you make purchases, respond to any offers, or download or use applications from us; (c) information you provide us when you contact us for help; (d) information you enter into our system when using the Application/Services/products, such as while asking doubts, participating in discussions and taking tests. The said information collected from the users

could be categorized as "Personal Information", "Sensitive Personal Information" and "Associated Information". Personal Information, Sensitive Personal Information and Associated Information (each as individually defined under this Information Technology (Reasonable security practices and procedures and sensitive personal data or information) Rules, 2011 (the "Data Protection Rules")) shall collectively be referred to as 'Information' in this Policy.

We may use the Information to contact you from time to time, to provide you with the Services, important information, required notices and marketing promotions. We will ask you when we need more information that personally identifies you (personal information) or allows us to contact you.

We will not differentiate between who is using the device to access the Website or Services or products, so long as the log in/access credentials match with yours. In order to make the best use of the Website/Services/products and enable your Information to be captured accurately on the Website/Services/products, it is essential that you have logged in using your own credentials.

We will, at all times, provide the option to you to not provide the Personal Information or Sensitive Personal Information, which we seek from you. Further, you shall, at any time while using the Application/Services/products, also have an option to withdraw your consent given earlier to us to use such Personal Information or Sensitive Personal Information. Such withdrawal of the consent is required to be sent in writing to us at the contact details provided in this Policy below. In such event, however, the Company fully reserves the right not to allow further usage of the Application or provide any Services/products thereunder to you.

#### **Automatically Collected Information**

In addition, the Application/products/Services may collect certain information automatically, including, but not limited to, the type of mobile device you use, your mobile devices unique device ID, the IP address of your mobile device, your mobile operating system, the type of mobile Internet browsers you use, and information about the way you use the Application/Services/products. As is true of most Mobile applications, we also collect other relevant information as per the permissions that you provide.

We use an outside credit card processing company to bill you for goods and services. These companies do not retain, share, store or use personally identifiable information for any other purpose.

#### **Use of your Personal Information**

We use the collected Information to analyse trends, to conduct research, to administer the Application/Services and products, to learn about each user's learning patterns and movements around the Application/Services and products and to gather demographic information and usage behaviour about our user base as a whole. Aggregated and individual, anonymized and non-anonymized data may periodically be transmitted to external service providers to help us improve the Application, products and our Services. We will share your information with third parties only in the ways that are described below in this Policy.

We may use the individual data and behaviour patterns combined with personal information to provide you with personalized content, and better your learning objectives. Third parties provide certain services which we may use to analyze the data and information to personalize, drive insights and help us better your experience or reach out to you with more value added applications, products, information and services. However, these third party companies do not have any

independent right to share this information. We do not sell, trade or rent your Information to any third party unless, we have been expressly authorized by you either in writing or electronically to do so. We may at times provide aggregate statistics about our customers, traffic patterns, and related site information to reputable third parties, however this information when disclosed will be in an aggregate form and does not contain any of your Personally Identifiable Information.

FOCAS Edu will occasionally send email notices or contact you to communicate about our Services, products and benefits, as they are considered an essential part of the Services/products you have chosen.

#### **We may disclose Information:**

as required by law, such as to comply with a subpoena, or similar legal process;

1. to enforce applicable ToU, including investigation of potential violations thereof; when we believe in good faith that disclosure is necessary to protect our rights, protect your safety or the safety of others, investigate fraud, address security or technical issues or respond to a government request;
2. with our trusted services providers who work on our behalf, do not have an independent use of the information we disclose to them, and have agreed to adhere to the rules set forth in this Policy;
3. to protect against imminent harm to the rights, property or safety of the Website/ FOCAS Edu or its users or the public as required or permitted by law;
4. with third party service providers in order to personalize the Website/Services/products for a better user experience and to perform behavioural analysis;

Any portion of the Information containing personal data relating to minors provided by you shall be deemed to be given with the consent of the minor's legal guardian. Such consent is deemed to be provided by your registration with us.

#### **Access to your Personal Information**

We will provide you with the means to ensure that your Personal Information is correct and current. If you have filled out a user profile, we will provide an obvious way for you to access and change your profile from our Services/Website/products. We adopt reasonable security measures to protect your password from being exposed or disclosed to anyone.

#### **Cookies**

We send cookies (small files containing a string of characters) to your computer, thereby uniquely identifying your browser. Cookies are used to track your preferences, help you login faster, and aggregated to determine user trends. This data is used to improve our offerings, such as providing more content in areas of greater interest to a majority of users.

Most browsers are initially set up to accept cookies, but you can reset your browser to refuse all cookies or to indicate when a cookie is being sent. Some of our features and services may not function properly if your cookies are disabled.

#### **Links**

We may present links in a format that enables us to keep track of whether these links have been followed. We use this information to improve our customized content. Clicking on links may take you to sites outside our domain. We are not responsible for the privacy practices of other web sites. We encourage our users to be aware when they leave our site to read the privacy statements of each and every web site that collects personally identifiable information. This Privacy Policy applies solely to information collected by our Website.

## **Alerts**

We may alert you by email or phone (through sms/call) to inform you about new service offerings or other information which we feel might be useful for you.

## **Public Forums**

When you use certain features on our website like the discussion forums and you post or share your personal information such as comments, messages, files, photos, will be available to all users, and will be in the public domain. All such sharing of information is done at your own risk. Please keep in mind that if you disclose personal information in your profile or when posting on our forums this information may become publicly available.

## **Firm Reviews**

The data / ratings shared by users of the Website on Firm Reviews is purely the opinion of such user and FOCAS Edu.com bears no responsibility on either authenticity / validity / accuracy of such information. FOCAS Edu just is a collector and disseminator of such information. We do not issue any guarantee on the accuracy / validity / authenticity of information on identity of the Firms or users rating them. FOCAS Edu bears no Liability either to the user or the rated firm on account of any such reviews.

## **Sharing of Copyrighted Data on our platforms**

We take our Intellectual Property and the legal rights that come along with them with highest level of seriousness and we will pursue all legal remedies in order to protect them; we believe the same about others rights to protect their IP rights as well. Hence we expressly prohibit sharing of IP of others on our platforms and in case such sharing happens and comes to our notice we shall have all rights to block users of our app who are sharing such information for such time periods as may be decided solely by us including banning them permanently. We shall also have all rights to delete such information from our servers as we do not use to partake in any such illegal sharing of IP protected content.

We shall share with all legal and regulatory authorities all such information as they may seek in connection with any user who partakes in such activities

## **Security**

We are concerned about safeguarding the confidentiality of your Information. We provide physical, electronic, and procedural safeguards to protect Information we process and maintain. For example, we limit access to this Information to authorized employees only who need to know that information in order to operate, develop or improve our Services/products/Website. Please be aware that, although we endeavour to provide reasonable security for information we process and maintain, no security system can prevent all potential security breaches.

## **How Long Do We Retain User Data?**

We plan to retain user data while an account is active and for at least three years afterward. We may alter this practice according to legal and business requirements. We may lengthen the retention period for some data if needed to comply with law or voluntary codes of conduct. Unless otherwise prohibited, we may shorten the retention period for some types of data if needed to free up storage space.

## **Log information**

When you access our Website and our servers automatically record information that your browser sends whenever you visit a Website. These server logs may include information such as your web request, internet protocol address, browser type, browser language, the date and time of your request and one or more cookies that may uniquely identify your browser.

## **User communications**

When you send an email or other communication to us, we may retain those communications in order to process your inquiries, respond to your requests and improve our Services.

## **Your Consent**

We believe that, every user of our Services/products/Website must be in a position to provide an informed consent prior to providing any Information required for the use of the Services/products/Website. By registering with us, you are expressly consenting to our collection, processing, storing, disclosing and handling of your information as set forth in this Policy now and as amended by us. Processing, your information in any way, including, but not limited to, collecting, storing, deleting, using, combining, sharing, transferring and disclosing information, all of which activities will take place in India. If you reside outside India your information will be transferred, processed and stored in accordance with the applicable data protection laws of India.

## **Payment Gateway**

Information relating to electronic transactions entered into via the Website shall be protected by encryption technology. We have partnered with a secure payment gate way i.e. Paytm,Phonepe gateway (PG). The Website does not have the ability to interfere and do not interfere with the payment gateway mechanism. The Website has no access to the information that you may enter for making the payment through the payment gateway. Your transaction and banking details or other information as required for internet banking or other payment instruments is held by our PG. Our PG uses Verisign secure socket layer (SSL) encryption and is PCI Compliant.

By creating a link to a payment gateway, we do not endorse the payment gateway, nor are we liable for any failure of products or services offered by such payment gateway. Such payment gateway may have a privacy policy different from that of ours. All failures/ errors/ omissions of the payment gateway shall be solely on the PG. You hereby consent that you shall not sue the Website for any disputes that you may have with the payment gateway for any wrong doing of the payment gateway.

## **Security**

We safeguard your privacy using known security standards and procedures and comply with applicable privacy laws. Our Website combines industry-approved physical, electronic and procedural

safeguards to ensure that your information is well protected through its life cycle in our infrastructure. Personal Information is hashed or encrypted when it is stored in our infrastructure. Personal Information is decrypted, processed and immediately re-encrypted or discarded when no longer necessary.

*We partner with Microsoft Clarity and Microsoft Advertising to capture how you use and interact with our website through behavioral metrics, heatmaps, and session replay to improve and market our products/services. Website usage data is captured using first and third-party cookies and other tracking technologies to determine the popularity of products/services and online activity. Additionally, we use this information for site optimization, fraud/security purposes, and advertising. For more information about how Microsoft collects and uses your data, visit the [Microsoft Privacy Statement](#)*

### **Opt-Out Policy**

Please email us at support@FOCAS Edu.com if you no longer wish to receive any information from us.

### **About this Privacy Policy**

If you choose to use our website FOCAS Edu, your visit and any dispute over privacy is subject to this Privacy Policy and Terms of Use. The terms of this Privacy Policy do not govern Personal Information furnished through any means other than the website.

All disputes between us and you in this regard are subject to exclusive jurisdiction of Trichy courts.

### **Changes to the Privacy Policy**

We reserve the right to modify this Privacy Policy and it is subject to change at any time without notice. If we decide to change our Privacy Policy, such changes will be posted on our website so that you are always aware of the latest amendments in this Privacy Policy and please review this Policy periodically.

### **Contact Information**

In case of any queries on Privacy Policy or any other grievances we shall undertake all reasonable efforts to address your grievances at the earliest possible opportunity. You may contact us at - support@FOCAS Edu.com